

LIBERTY PARK MASTER OWNERS' ASSOCIATION, INC.

REVISED RULES AND REQUIREMENTS FOR GOLF CARTS, PROHIBITED VEHICLES AND ALTERNATIVE STREET VEHICLES

As of November 10, 2018

Pursuant to the authority set forth in the (1) Covenants, Conditions and Restrictions governing residential areas (the "Residential Covenants"), and (2) the Declaration of Protective Covenants for the Commercial Development Area at Liberty Park, governing commercial areas (the "Commercial Covenants", together with the Residential Covenants, hereinafter collectively referred to as the "Covenants"), all within the Liberty Park development, consisting of approximately 4,000 acres (the "Development"), the Liberty Park Master Owners' Association, Inc., an Alabama non-profit corporation ("MOA"), hereby adopts the following rules and requirements relative to the use and operation of Golf Carts (as hereinafter defined) and Prohibited Vehicles (as hereinafter defined) within the Development and on private streets adjacent thereto that are owned or maintained by MOA. References in these rules and requirements to "Development" shall include the term "Project", as defined in the Commercial Covenants.

1. **Violations; Enforcement; Definitions.** Any violation of these rules and requirements may result in an immediate monetary fine against the Responsible Party (as hereinafter defined) in the amounts as herein stated or in such other amounts established by MOA from time to time. Any such fine shall constitute an equitable charge and continuing lien on the Responsible Party's property within the Development and will be a personal obligation of the Responsible Party. If any such fine is not paid when due as required in these rules and requirements, the remedies and rights of enforcement set forth in Section 8.10 of the Residential Covenants will apply for the benefit of MOA, including, without limitation, the recording of a lien in favor of MOA against the applicable property within the Development and foreclosure. In the event of a conflict between these rules and requirements and Section 8.10 of the Residential Covenants, these rules and requirements shall control.

For purposes of these rules and requirements, the term "Responsible Party" shall mean and refer to either of the following, as applicable:

- (i) The owner of property within the Development who also owns the Golf Cart, ASV or Prohibited Vehicle, as applicable, involved in any violation of these rules and requirements; or
- (ii) The owner of property within the Development whose tenant, agent, employee, contractor, subcontractor or representative owns and/or operates the Golf Cart, ASV or Prohibited Vehicle, as applicable, involved in any violation of these rules and requirements.

For purposes of these rules and requirements, the term "Golf Cart" (plural, "Golf Carts") is defined as a privately-owned motor vehicle that is designed and manufactured for operation on a golf course or for sporting or recreational purposes and that is not designed to transport more than six (6) persons at any one time, including UTV's and side-by-sides. All golf carts must be at least five feet in height from ground to sun top. Anything shorter will not be allowed.

For purposes of these rules and requirements, the term "Alternative Street Vehicle" (plural, "Alternative Street Vehicles") shall mean and refer to any gasoline/diesel powered or electric powered utility-type vehicle, go cart, tractor and/or any similar vehicle (i) the owner of which also owns

property within the Development, (ii) for which the Alabama Department of Motor Vehicles has issued a certificate of title, a current Alabama vehicle license plate (properly displayed on such vehicle), and an Alabama Department of Revenue Motor Vehicle Registration, (iii) that is in full compliance with these rules and requirements and all other applicable federal, state and local laws, ordinances, rules and regulations, and (iv) is compliant and consistent in all respects with the character of the Development, in MOA's sole and absolute discretion. There is hereby excepted from the definition of Alternative Street Vehicles all such vehicles used by MOA, Liberty Park Joint Venture, LLP, Old Overton Country Club and the affiliates, contractors, and subcontractors of these excepted entities.

2. **Right to Use Golf Cart.** The use of a Golf Cart within the Development is a nontransferable and non-assignable personal privilege available only to the owners of property within the Residential Communities. Any other Golf Cart used or operated on the sidewalks, common areas streets or roads within the Development shall be deemed a Prohibited Vehicle, as defined in paragraph 12 below, and subject to all sanctions related thereto.
3. **Age and License Requirements.** Each operator of a Golf Cart or ASV must be at least sixteen (16) years of age with a valid automobile driver's license or at least fifteen (15) years of age with a valid driver's permit and accompanied by an adult. Driver's license or permit must be in his or her possession at all times while operating a Golf Cart or ASV within the Development.
4. **Safety.** Golf Carts must be operated at a reasonably safe speed at all times. All Golf Cart riders must remain seated while the Golf Cart is in motion. Riders in any Golf Cart in excess of the number of seats are not allowed.
5. **Hours of Operation.** No Golf Carts shall be operated after dusk unless equipped with headlights and taillights.
6. **Operating Golf Carts on Streets.** No Golf Carts are permitted on a street or road within the Development except (i) at designated street crossings, (ii) in other paved areas within the Residential Communities where sidewalks are not available, or (iii) in those paved areas within the Residential Communities where sidewalks are less than five (5) feet in width, in which case Golf Carts shall not be operated on the sidewalks. DO NOT cut across grass areas, medians or road shoulders except to yield the right of way to pedestrians and/or non-motorized vehicles as stated in paragraph 8 below.
7. **Sidewalk Right of Way.** When Golf Carts and pedestrians and/or non-motorized vehicles (such as bicycles or skateboards) are simultaneously using a sidewalk, Golf Carts shall yield the right of way to the pedestrians and/or non-motorized vehicles, as applicable.
8. **Parking; Storage.** When parking Golf Carts within the common areas of the Residential Communities and/or on the properties of Old Overton Club, including without limitation, Old Overton Country Club and Old Overton Swim and Tennis, such Golf Carts must be parked only in designated parking spaces. Under no circumstances shall any Golf Cart be parked near the front door, in the driveway or in the porte cochere of Old Overton Country Club. Golf Cart owners must store their Golf Carts on their own property in a location where the Golf Cart is not visible from any street.
9. **Right of Inspection.** MOA shall have the right, but not the obligation, to inspect and approve Golf Carts as to appearance, safety and other standards as MOA may establish from time to time.

10. **Required Equipment.** All Golf Carts used or operated within the Residential Communities must have a rear view mirror, reflectorized warning devices and any other safety equipment or specifications as may be established or required by MOA from time to time.

11. **Prohibited Vehicles.** Except for those vehicles defined as “Golf Carts” under paragraph 1 above, no gasoline/diesel powered vehicles such as four-wheelers, ATV’s, off-road motorcycles, go-carts (a small, light, low-slung four-wheeled vehicle) and/or any similar vehicle (collectively, “Prohibited Vehicles”, singular, “Prohibited Vehicle”), shall be allowed on any sidewalks, common areas, streets or roads of the Development. In the event an owner of property within the Development owns a Prohibited Vehicle that meets the requirements of the Alabama Department of Motor Vehicles for the issuance of a certificate of title and for which a current license plate and a current Alabama Department of Revenue Motor Vehicle Registration have been issued, such owner shall comply with MOA’s rules and regulations specific to such vehicles prior to operating any such vehicle within the Development. No aftermarket modifications are allowed to an approved vehicle unless approved by the HOA. Under certain circumstances and conditions, such a vehicle may be accepted as a Prohibited Vehicle and may be classified as an Alternative Street Vehicle. For further information on the definition and the rules and requirements for Alternative Street Vehicles, owners must contact MOA at arc-moa@libertypark.com. There is hereby excepted from the definition of Prohibited Vehicles all such vehicles used by MOA, Liberty Park Joint Venture, LLP, Old Overton Country Club and the affiliates, contractors, and subcontractors of these excepted entities.

12. **Alternative Street Vehicles Permitted.** Subject to these rules and requirements, Alternative Street Vehicles are permitted on private streets and roads within the Development but are prohibited on sidewalks or other common areas of the Development.

Traffic Controls. Drivers or operators of Alternative Street Vehicles within the Development must obey all traffic signals, stop signs, speed limit signs, yield signs, and all other street traffic controls posted and installed within the Development from time to time.

Determination of Alternative Street Vehicle Status. Effective as of November 1, 2018, prior to operating within the Development any vehicle deemed by its owner to be an “Alternative Street Vehicle” within the definition set forth in paragraph 1 above, the owner of such vehicle shall provide to MOA copies of the certificate of title issued by the Alabama Department of Motor Vehicles and the Alabama Department of Revenue Motor Vehicle Registration applicable to such Alternative Street Vehicle, and allow MOA an opportunity to inspect such vehicle to determine whether such vehicle is within the definition of “Alternative Street Vehicle”, as set forth in paragraph 1 above, in MOA’s sole and absolute discretion.

13. **Abandoned Golf Carts.** Any abandoned Golf Cart must be removed from the sidewalks or other common areas within the Development within twenty-four (24) hours after such abandonment and stored on the Golf Cart owner’s property in a location where the Golf Cart is not visible from any street, or in a location outside the Development. Any abandoned Golf Cart remaining on the sidewalks or other common area within the Development after such twenty-four (24) hour period will be towed and stored at the Golf Cart owner’s expense, and such owner will be subject to a monetary fine.

14. **Registration; Registration Fee.** Effective as of November 1, 2018, prior to operating any Golf Cart within the Development, all Golf Cart owners who also own property within the Residential Communities shall register their Golf Carts with the MOA and sign a Golf Cart Registration and Indemnity Agreement, including a release of liability and indemnity holding MOA and Liberty Park

Joint Venture, LLP, an Alabama limited liability partnership (“LPJV”), and their respective successors, assigns, members, partners, officers, employees, affiliates, representatives, agents and contractors, harmless as a result of any loss or damage relating to the ownership or operation of the Golf Cart. At such registration, all such Golf Cart owners shall also be required to pay to MOA a golf cart registration fee of \$25.00 per Golf Cart, or such other amount as established by MOA from time to time, in MOA’s sole and absolute discretion. This must be done yearly on or before January 1st. Golf Carts without a current annual decal will not be permitted on sidewalks and other common areas within the Development.

15. **Liability Insurance Required.** At such registration, all such Golf Cart owners shall also be required to provide MOA with a certificate of insurance or other written verification acceptable to MOA as proof that the operation of the Golf Cart is covered by a liability, automobile or homeowners insurance policy in the name of the Golf Cart owner with policy limits in the minimum amount of \$300,000 and such policy must provide that it can only be cancelled upon thirty (30) days’ written notice to MOA. The Golf Cart owner must also name Liberty Park Master Owners’ Association, Inc. and Liberty Park Joint Venture, LLP, and their respective successors, assigns, members, partners, officers, employees, affiliates, representatives, agents and contractors as additional insureds under such liability insurance policy.

16. **Issuance of Annual Decal.** MOA will issue an identification number and one (1) annual registration decal for a Golf Cart or alternative street vehicle owned by an owner of property within the Residential Communities upon MOA’s receipt of (i) a signed Golf Cart Registration and Indemnity Agreement, (ii) copy of liability insurance evidencing the coverage and other requirements as specified in paragraph 15 above, and (iii) the registration fee of \$25.00, or such other amount established by MOA, in MOA’s sole and absolute discretion. The registration number and annual registration decal must be placed in clear view on the lower front of the driver’s side windshield or on the front of the driver’s side of the Golf Cart (see attached illustrations).

17. **Damage to MOA or LPJV Property.** The Responsible Party shall be fully responsible for any and all damages caused by the use or misuse of a Golf Cart, ASV or Prohibited Vehicle by anyone operating it. Such Responsible Party shall reimburse MOA for any and all damages to the Development by reason of any such use or misuse, including without limitation, damage to any property of MOA or LPJV.

18. **Other Driver Requirements.** Each Golf Cart or ASV owner is required to ensure that their Golf Cart or ASV is restricted to licensed and insured drivers who will operate the Golf Cart or ASV in a safe, prudent manner and in accordance with these rules and requirements.

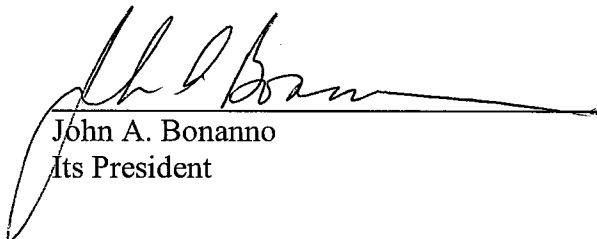
19. **Notice of Violation; Fines; Revocation of Registration.** Any violation of these rules and requirements will result in a citation or Notice of Violation (“NOV”) and immediate monetary fine against the Responsible Party, pursuant to the Covenants and these rules and requirements. Except as provided in paragraph 20 below, for the first and/or second NOV issued to a Responsible Party for a violation within any calendar year, a monetary fine per NOV will be immediately assessed against such Responsible Party and his or her property within the Development. For the third NOV issued to a Responsible Party for a violation within any calendar year, a monetary fine will be immediately assessed against such Responsible Party and his or her property within the Development. In the event the Responsible Party and/or any other driver or operator of such Responsible Party commits a total of three (3) cited violations hereunder within any calendar year, such Responsible Party’s registration will be revoked for one (1) year beginning on the date of the third cited violation. In the event a

Responsible Party operates, or allows any other driver to operate, such Responsible Party's vehicle after the revocation of such Responsible Party's registration, such Responsible Party shall be subject to the provisions of paragraph 20 below.

20. **Fine for Operation of Unregistered Golf Cart or Prohibited Vehicle.** Each time any Responsible Party or other driver or operator is cited for operating either an unregistered Golf Cart or a Prohibited Vehicle within the Development, or for operating a Golf Cart after revocation of the applicable Golf Cart registration, a monetary fine will be assessed and imposed against such Responsible Party and his or her property within the Development. The adopted list of fine amounts are attached.

21. **Amendment.** MOA reserves the right to amend or modify these rules and requirements, including without limitation, the amounts of monetary fines, registration fees and renewal fees as stated herein, at any time without notice. Changes will be provided in communication from the HOA.

LIBERTY PARK MASTER OWNERS' ASSOCIATION, INC.



John A. Bonanno
Its President